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Superior Court of Washington
County of King

In re the Custody of:

TIMOTHY E. BENNETT, II

Child,

MELVINA ROBERSON,

Petitioner,

and

ZACKARIAH J. BENNETT and KELLY J.
BENNETT,

Respondents.

No. 08-3-03956-4SEA

Ex Parte Restraining Order/
Order to Show Cause
(Nonparental Custody)
(TPROTSC/ORTSC)

☐ Clerk's Action Required

☐ Law Enforcement Notification, ¶ 4.1

Restraining Order Summary:

☐ Does not apply. ☒ Restraining Order Summary is set forth below:

Name of person(s) restrained: **ZACKARIAH J. BENNETT**. Name of person(s) protected: **MELVINA ROBERSON** and **TIMOTHY E. BENNETT, II**. See paragraph 4.1.

Violation of a Restraining Order in Paragraph 4.1 Below With Actual Knowledge of its Terms is a Criminal Offense Under Chapter 26.50 RCW and Will Subject the Violator to Arrest. RCW 26.10.115.

I. Show Cause Order

It is ordered that **ZACKARIAH J. BENNETT** appear and show cause, if any, why the restraints below should not be continued in full force and effect pending final determination of this action and why the other relief, if any, requested in the motion should not be granted. A hearing has been set for the following date, time and place:

Date: June 12, 2008 Time: 9:30 a.m. p.m.
Place: King County Courthouse
3rd & James Room/Department: ~~391~~ 291
Seattle, WA.

Ex Parte Restraining Ord/Ord to Show Cause (TPROTSC/ORTSC)
WPF CU 03.0170 (6/2006) - CR 65 (b); RCW 26.10.115 - Page 1 of 3

O. W. HOLLOWELL & ASSOCIATES
4471 Tolt Ave. P. O. Box 1041
Carnation, Washington 98014
Phone: 425-333-4848 FAX: 425-333-4884

ORIGINAL

1 If you disagree with any part of the motion, you must respond to the motion in writing before the
2 hearing and by the deadline for your county. At the hearing, the court will consider Written sworn
3 affidavits or declarations. Oral testimony may Not be allowed. To respond, you must:
4 (1) file your documents with the court; (2) provide a copy of those documents to the judge or
5 commissioner's staff; (3) serve the other party's attorney with copies of your documents (or have the
6 other party served if that party does not have an attorney); and (4) complete your filing and service of
7 documents within the time period required by the local court rules in effect in your county. If you
8 need more information, you are advised to consult an attorney or a courthouse facilitator.

9 **Failure to Appear May Result in a Temporary Order Being Entered by the Court Which**
10 **Grants the Relief Requested in the Motion Without Further Notice.**

11 II. Basis

12 A motion for a temporary restraining order without written or oral notice to **ZACHARIAH J.**
13 **BENNETT** [Name] or that party's lawyer has been made to this court. The court has consulted the
14 judicial information system, if available, to determine the existence of any information and proceedings
15 that are relevant to the placement of the child(ren).

16 III. Findings

17 Indian Child Welfare Act

18 Indian child status:

19 ☐ The child(ren) are Indian child(ren) as defined by 25 U.S.C. § 1903. The Indian Child
20 Welfare Act does apply to these proceedings; ☐ all notice and evidentiary requirements
21 under the Indian Child Welfare Act have been satisfied, as follows:

22 ☐ All notice and evidentiary requirements under the Indian Child Welfare Act have
23 not been satisfied. The court directs the following actions occur to ensure that
24 notice and evidentiary requirements under the Indian Child Welfare Act have
25 been or will be satisfied:

26 ☒ The child(ren) are not Indian child(ren) as defined by 25 U.S.C § 1903 and the Indian
Child Welfare Act, 25 U.S.C. § 1901, et seq., does not apply to these proceedings.

IV. Order

It is Ordered:

4.1 Restraining Order

**Violation of a Restraining Order in Paragraph 4.1 With Actual Notice of its Terms Is a
Criminal Offense Under Chapter 26.50 RCW and Will Subject the Violator to Arrest.
RCW 26.10.115.**

Ex Parte Restraining Ord/Ord to Show Cause (TPROTSC/ORTSC)
WPF CU 03.0170 (6/2006) - CR 65 (b); RCW 26.10.115 - Page 2 of 3

- 1 ☐ Does not apply.
- 2 ☒ **ZACKARIAH J. BENNETT** [Name] is restrained and enjoined from disturbing the
- 3 ☒ **ZACKARIAH J. BENNETT** [Name] is restrained and enjoined from going onto the
- 4 grounds of or entering the home, work place or school of the other party or the day care
- 5 ☒ **ZACKARIAH J. BENNETT** [Name] is restrained and enjoined from knowingly coming
- 6 within or knowingly remaining within **100 feet** (Distance) of the home, work place, or
- 7 ☒ **ZACKARIAH J. BENNETT** [Name] is restrained and enjoined from molesting,
- 8 assaulting, harassing, or stalking **MELVINA ROBERSON** [Name].
- 9 ☒ Clerk's Action. The clerk of the court shall forward a copy of this order, on or before the
- 10 next judicial day, to **CARNATION POLICE DEPARTMENT** [name of appropriate
- 11 law enforcement agency] which shall enter this order into any computer-based criminal
- 12 intelligence system available in this state used by law enforcement agencies to list
- 13 outstanding warrants. (A law enforcement information sheet must be completed by the
- 14 party or the party's attorney and provided with this order before this order will be
- 15 entered into the law enforcement computer system.)

12 **4.2 Other Restraining Order**

- 13 ☒ **ZACKARIAH J. BENNETT** and **KELLY J. BENNETT** [Name] is restrained and
- 14 enjoined from removing any of the children from the state of Washington.
- 15 ☒ The children shall reside with **MELVINA ROBERSON** [Name] until the hearing.

16 **4.3 Surrender of Deadly Weapons**

- 17 ☒ Does not apply.

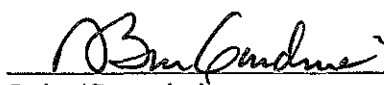
18 **4.4 Expiration Date**

19 This order shall expire on the hearing date set forth above or 14 days from the date of issuance,

20 which ever is sooner, unless otherwise extended by the court.

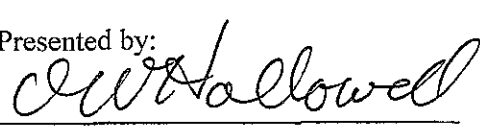
21 **4.5 Other**

22 Dated: 5/29/08 at 11:50 a.m./p.m.

23 
Judge/Commissioner

BRUCE GARDINER

24 Presented by:

25 

O.W. HOLLOWELL WSBA 9163

26 Date: 5-28-08

Ex Parte Restraining Ord/Ord to Show Cause (TPROTSC/ORTSC)
WPF CU 03.0170 (6/2006) - CR 65 (b); RCW 26.10.115 - Page 3 of 3

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